1910, ch. 253, § 9, 36 Stat. 448; Oct. 14, 1940, ch. 876, title I, subch. V, § 504, 54 Stat. 1172.

SECTIONS 336–389 were repealed by act Oct. 14, 1940, ch. 876, title I, subch. V, § 504, 54 Stat. 1172. Section 336, providing for the renunciation of titles of nobility by aliens seeking citizenship, was from act June 29, 1906, ch. 3592, § 4, 34 Stat. 596; present provisions are contained in section 735 (c) of this title. Section 337, relating to reimbursement for publication of citizenship textbooks, was from acts June 29, 1906, ch. 3592, § 4 (9); May 9, 1918, ch. 69, § 1, 40 Stat. 544; present provisions are contained in sections 727 (b) and 744 of this title. Section 338, relating to residence requirements for certain Filipinos and Puerto Ricans serving in military service, was from acts June 29, 1906, ch. 3592, § 4 (7); May 9, 1918, ch. 69, § 1, 40 Stat. 542; June 4, 1920, ch. 227, § 30, 41 Stat. 775; Mar. 2, 1929, ch. 536, § 6 (c), (d), 45 Stat. 1514; May 17, 1932, ch. 190, 47 Stat. 158; May 25, 1932, ch. 203, § 2 (a), 47 Stat. 165; July 30, 1937, ch. 545, § 3, 50 Stat. 548; present provisions are contained in sections 707, 724, and 725 of this title. Section 339, relating to residence of aliens conditionally serving in military services after honorable discharge, was from acts June 29, 1906, ch. 3592, § 4 (7); May 9, 1918, ch. 69, § 1, 40 Stat. 542.

SECTION 389a, relating to naturalization of alien veterans of World War I, is now set out in note under section 724 of this title. It was from act Aug. 19, 1937, ch. 698, § 2, as added Aug. 16, 1940, ch. 684, 54 Stat. 789.

SECTIONS 390–392, relating to naturalization of alien veterans of World War I, were repealed by act Oct. 14, 1940, ch. 876, title I, subch. V, § 504, 54 Stat. 1172. They were from act June 29, 1906, ch. 3592, §§ 4 (7), 4 (13), 4 (7), respectively, as amended May 19, 1918, ch. 69, § 1, 40 Stat. 542–544. Present provisions on the subject of sections 391 and 392 are contained in section 724 of this title.

SECTIONS 392a–392d, relating to naturalization of alien veterans of World War I, are now set out in note under section 724 of this title. Section 392a was from acts May 26, 1926, ch. 398, § 7, 44 Stat. 655; Mar. 4, 1929, ch. 683, § 3, 45 Stat. 1546. Sections 392b–392d were from acts May 25, 1932, ch. 203, § 1, 47 Stat. 165; Ex. Ord. No. 6166, § 14, June 10, 1933; June 24, 1935, ch. 283, §§ 1, 2, 3, 49 Stat. 395; Aug. 23, 1937, ch. 735, §§ 1, 2, 3, 50 Stat. 743, 744; June 21, 1939, ch. 234, §§ 1, 2, 3, 53 Stat. 851; Oct. 14, 1940, ch. 876, title I, subch. V, § 504, 54 Stat. 1172.

SECTIONS 392e–398 were repealed by act Oct. 14, 1940, ch. 876, title I, subch. V, § 504, 54 Stat. 1172. Sections 392e–392g, relating to naturalization of alien veterans of World War I formerly ineligible because of race, were from act June 24, 1935, ch. 290, §§ 1–3, respectively, 49 Stat. 397, 398. Sections 393–395, relating to naturalization of alien veterans, were from acts June 29, 1906, ch. 3592, § 4 (7); May 9, 1918, ch. 69, §§ 1, 2, 40 Stat. 543, 546; present provisions are contained in sections 724 and 725 of this title. Sections 396–398, relating to time of filing petition, subpoena of witnesses, and final hearings on petitions, respectively, were from act June 29, 1906, ch. 3592, §§ 6, 5, 9, respectively, 34 Stat. 598, 599, as amended Mar. 3, 1931, ch. 442, §§ 1, 2, 46 Stat. 1511; present provisions are contained in sections 709 (d), 732 (d), and 734 of this title.

SECTION 398a, relating to patriotic address to new citizens, is now section 727a of this title. It was from act May 3, 1940, ch. 183, § 2, 54 Stat. 178.

SECTIONS 399–402 were repealed by act Oct. 14, 1940, ch. 876, title I, subch. V, § 504, 54 Stat. 1172. Section 399, authorizing the United States to appear and oppose the right of aliens to naturalization, was from act June 29, 1906, ch. 3592, § 11, 34 Stat. 599; present provisions are contained in section 734 of this title. Section 399a, relating to preliminary examination of petitioners for naturalization, was from act June 8, 1926, ch. 502, 44 Stat. 709; present provisions are contained in sections 733 and 734 of this title. Sections 399b–399d, relating to certificates of citizenship, were from acts June 29, 1906, ch. 3592, §§ 32, 33, 34, respectively; Mar. 2, 1929, ch. 536, § 9, 45 Stat. 1515; May 25, 1932, ch. 203, §§ 4, 5, 47 Stat. 165; Apr. 19, 1934, ch. 154, §§ 2, 4, 48 Stat. 597; present provisions are contained in sections 727, 730, 739, 741, 742, and 746 of this title. Section 399e, relating to annual reports of Commissioner of Immigration, was from act Mar. 2, 1929, ch. 536, § 10, 45 Stat. 1516; present provisions are contained in section 745 of this title. Section 399f, relating to counsel fees in naturalization proceedings, was from act Apr. 19, 1934, ch. 154, § 5, 48 Stat. 593; present provisions on the same subject are contained in section 742 (h) of this title. Sections 400–402, relating to clerks of naturalization courts and their fees and clerical assistants, were from act June 29, 1906, ch. 3592, §§ 12, 13, 34 Stat 600, as amended June 25, 1910, ch. 401, § 1, 36 Stat. 829; June 12, 1917, ch. 27, § 1, 40 Stat. 171; Feb. 26, 1919, ch. 49, §§ 1, 2, 40 Stat. 1182; Feb. 11, 1921, ch. 46, 41 Stat. 1099; Mar. 4, 1921, ch. 161, § 1, 41 Stat. 1412; June 10, 1921, ch. 18, § 304, 42 Stat. 24; Mar. 2, 1929, ch. 536, § 7 (a), 45 Stat. 1514; and Apr. 19, 1934, ch. 154, § 1; 48 Stat. 597; present provisions are contained in sections 737, 742, and 746 of this title.

SECTION 402a, relating to disposition of fees received by clerks of courts, is now set out in note under section 742 of this title. It was from act Mar. 2, 1929, ch. 536, § 7 (b), 45 Stat. 1515; EX. ORD. NO. 6166, § 14, June 10, 1933.

SECTIONS 403–405 were repealed by act Oct. 14, 1940, ch. 876, title I, subch. V, § 504, 54 Stat. 1172. Sections 403 and 404, relating to fees collectible from alien soldiers, and to recording declarations and petitions, respectively, were from act June 29, 1906, ch. 3592, §§ 4 (7), 14, respectively, 34 Stat. 601, as amended May 9, 1918, ch. 69, § 1, 40 Stat. 544; present provisions are contained in sections 736, 737 (f), and 742 (i) of this title. Section 405, relating to cancellation of certificates of citizenship, was from acts June 29, 1906, ch. 3592, § 15, 34 Stat. 601; May 9, 1918, ch. 69, § 1, 40 Stat. 544; present provisions are contained in section 738 of this title.

SECTIONS 406 and 407, validating certain certificates of naturalization, are now set out in note under section 736 of this title. They were from acts May 9, 1918, ch. 69, § 3, 40 Stat. 548, and June 29, 1906, ch. 3624, § 1, 34 Stat. 630, respectively.

SECTIONS 408–415 were repealed by act Oct. 14, 1940, ch. 876, title I, subch. V, § 504, 54 Stat. 1172. Section 408, 409, relating to naturalization forms, were from act June 29, 1906, ch. 3592, §§ 3, 27, respectively, 34 Stat. 596, 603; present provisions on the subject of section 408 are contained in sections 701 (c) and 727 (d) of this title, and on the subject of section 409, in sections 731, 732, and 736 of this title. Sections 410–415, relating to the punishment of crimes in connection with the naturalization of aliens, were from act June 29, 1906, ch. 3592, §§ 13, 20–24, respectively, 34 Stat. 602, 603; present provisions are now contained in sections 738 and 746 of this title.

SECTION 416, authorizing the punishment of offenses against the naturalization laws committed prior to May 9, 1918, under laws then in effect but since repealed, is now set out in note under section 746 of this title. It was from act May 9, 1918, ch. 69, § 2, 40 Stat. 547.

REPEALS

Effective date and saving clauses of act Oct. 14, 1940, see sections 906, 904 note, and 747 of this title.

Chapter 10.—ALIEN REGISTRATION

Sec.
451. Alien seeking entry into United States.
452. Registration of aliens in United States.
453. Special provisions governing registration.
(a) Extension of time for registration.
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NATIONALITY ACT OF 1940

On Oct. 14, 1940, and subsequent to the enactment of this chapter, Congress passed the Nationality Act of 1940 (see section 501 et seq. of this title) for the purpose of consolidating and restating the laws of the United States upon citizenship, naturalization, and expatriation. Said act contains further provisions relating to registry of aliens (see sections 728 and 746 (*l*) of this title), and section 504 thereof, in addition to certain specific repeals, provided (see section 904 of this title) that all acts or parts of acts in conflict therewith were thereby repealed.

§ 451. Alien seeking entry into United States.

No visa shall hereafter be issued to any alien seeking to enter the United States unless said alien has been registered and fingerprinted in duplicate. One copy of the registration and fingerprint record shall be retained by the consul. The second copy shall be attached to the alien's visa and shall be taken up by the examining immigrant inspector at the port of arrival of the alien in the United States and forwarded to the Department of Justice, at Washington, District of Columbia.

Any alien seeking to enter the United States who does not present a visa (except in emergency cases defined by the Secretary of State), a reentry permit, or a border-crossing identification card shall be excluded from admission to the United States. (June 28, 1940, ch. 439, title III, § 30, 54 Stat. 673.)

EFFECTIVE DATE

Effective date of this section, see section 459 (b) of this title.

SHORT TITLE

Section 41 of act June 28, 1940, cited to text, provided that sections 137, 155, 156a, 451–460 of this title and sections 9–13 of Title 18, Criminal Code and Criminal Procedure, popularly known as the "Alien Registration Act, 1940."

SEPARABILITY PROVISIONS

Section 40 of act June 28, 1940, cited to text, provided as follows: "SEC. 40. If any provision of this Act, or the application thereof to any person or circumstance, is held invalid, the remainder of the Act, and the application of such provision to other persons or circumstances, shall not be affected thereby."

§ 452. Registration of aliens iu United States.

(a) It shall be the duty of every alien now or hereafter in the United States, who (1) is fourteen years of age or older, (2) has not been registered and fingerprinted under section 451 of this title, and (3) remains in the United States for thirty days or longer, to apply for registration and to be fingerprinted before the expiration of such thirty days.

(b) It shall be the duty of every parent or legal guardian of any alien now or hereafter in the United States, who (1) is less than fourteen years of age, (2) has not been registered under section 451 of this title, and (3) remains in the United States for thirty days or longer, to apply for the registration of such alien before the expiration of such thirty days. Whenever any alien attains his fourteenth birthday in the United States he shall, within thirty days thereafter, apply in person for registration and to be fingerprinted. (June 28, 1940, ch. 439, title III, § 31, 54 Stat. 673.)

EFFECTIVE DATE

Effective date of this section, see section 459 (b) of this title.

§ 453. Special provisions governing registration.

Notwithstanding the provisions of sections 451 and 452 of this title—

(a) Extension of time for registration.

The application for the registration and fingerprinting, or for the registration, of any alien who is in the United States on the effective date of such sections may be made at any time within four months after such date.

(b) Foreign government officials.

No foreign government official, or member of his family, shall be required to be registered or fingerprinted under this chapter.

(c) Registration of special classes of aliens.

The Commissioner is authorized to prescribe, with the approval of the Attorney General, special regulations for the registration and fingerprinting of (1) alien seamen, (2) holders of border-crossing identification cards, (3) aliens confined in institutions within the United States, (4) aliens under order of deportation, and (5) aliens of any other class not lawfully admitted to the United States for permanent residence. (June 28, 1940, ch. 439, title III, § 32, 54 Stat. 674.)

§ 454. Place of registration; duties of postmasters.

(a) All applications for registration and fingerprinting under section 452 of this title shall be made at post offices or such other places as may be designated by the Commissioner.

(b) It shall be the duty of every postmaster, with such assistance as shall be provided by the Commissioner, to register and fingerprint any applicant for registration and fingerprinting under such section, and for such purposes to designate appropriate space in the local post office for such registration and fingerprinting. Every postmaster shall forward promptly to the Department of Justice, at Washington, District of Columbia, the registration and fingerprint record of every alien registered and fingerprinted by him. The Commissioner may designate such other places for registration and fingerprinting as may be necessary for carrying out the provisions of sections 137, 155, 156a, 451–460 of this title and sections 9–13 of Title 18, and provide for registration and fingerprinting of aliens at such places by officers or employees of the Immigration and Naturalization Service designated by the Commissioner. The duties imposed upon any postmaster under said sections shall also be performed by any employees at the post office of such postmaster who are designated by the postmaster for such purpose. (June 28, 1940, ch. 439, title III, § 33, 54 Stat. 674.)

§ 455. Forms and procedure; records as confidential; oaths.

(a) The Commissioner is authorized and directed to prepare forms for the registration and fingerprinting of aliens under this chapter. Such forms shall contain inquiries with respect to (1) the date and place of entry of the alien into the United States; (2) activities in which he has been and intends to be engaged; (3) the length of time he expects to remain in the United States; (4) the criminal record, if any, of such alien; and (5) such additional matters as

may be prescribed by the Commissioner, with the approval of the Attorney General.

(b) All registration and fingerprint records made under the provisions of this chapter shall be secret and confidential, and shall be made available only to such persons or agencies as may be designated by the Commissioner, with the approval of the Attorney General.

(c) Every person required to apply for the registration of himself or another under this chapter shall submit under oath the information required for such registration. Any person authorized to register aliens under this chapter shall be authorized to administer oaths for such purpose. (June 28, 1940, ch. 439, title III, § 34, 54 Stat. 674.)

§ 456. Notice of change of address.

Any alien required to be registered under this chapter who is a resident of the United States shall notify the Commissioner in writing of each change of residence and new address within five days from the date of such change. Any other alien required to be registered under this chapter shall notify the Commissioner in writing of his address at the expiration of each three months' period of residence in the United States. In the case of an alien for whom a parent or legal guardian is required to apply for registration, the notices required by this section shall be given by such parent or legal guardian. (June 28, 1940, ch. 439, title III, § 35, 54 Stat. 675.)

§ 457. Penalties.

(a) Any alien required to apply for registration and to be fingerprinted who willfully fails or refuses to make such application or to be fingerprinted, and any parent or legal guardian required to apply for the registration of any alien who willfully fails or refuses to file application for the registration of such alien shall, upon conviction thereof be fined not to exceed $1,000 or be imprisoned not more than six months, or both.

(b) Any alien, or any parent or legal guardian of any alien, who fails to give written notice to the Commissioner of change of address as required by section 456 of this title shall, upon conviction thereof, be fined not to exceed $100, or be imprisoned not more than thirty days, or both.

(c) Any alien or any parent or legal guardian of any alien, who files an application for registration containing statements known by him to be false, or who procures or attempts to procure registration of himself or another person through fraud, shall, upon conviction thereof, be fined not to exceed $1,000, or be imprisoned not more than six months, or both; and any alien so convicted within five years after entry into the United States shall, upon the warrant of the Attorney General, be taken into custody and be deported in the manner provided in sections 155 and 156 of this title.

(d) Any person who with unlawful intent photographs, prints, or in any other manner makes, or executes, any engraving, photograph, print, or impression in the likeness of an alien registration receipt card or any colorable imitation thereof, except when and as authorized under such rules and regulations as may be prescribed by the Attorney General, shall upon conviction, be fined not to exceed $5,000 or be imprisoned not more than five years, or both. (June 28, 1940, ch. 439, title III, § 36, 54 Stat. 675; Oct. 13, 1941, ch. 432, 55 Stat. 736.)

AMENDMENTS

1941—Subsec. (d) added by act Oct. 13, 1941, cited to text.

§ 458. Administration and enforcement of registration law.

(a) The Commissioner, with the approval of the Attorney General, is authorized and empowered to make and prescribe, and from time to time to change and amend, such rules and regulations not in conflict with sections 137, 155, 156a, 451–460 of this title and sections 9–13 of Title 18 as he may deem necessary and proper in aid of the administration and enforcement of this chapter (including provisions for the identification of aliens registered under this chapter); except that all such rules and regulations, insofar as they relate to the performance of functions by consular officers or officers or employees in the Postal Service, shall be prescribed by the Secretary of State and the Postmaster General, respectively, upon recommendation of the Attorney General. The powers conferred upon the Attorney General by sections 137, 155, 156a, 451–460 of this title and sections 9–13 of Title 18 and all other powers of the Attorney General relating to the administration of the Immigration and Naturalization Service may be exercised by the Attorney General through such officers of the Department of Justice, including officers of the Immigration and Naturalization Service, attorneys, special attorneys, and special assistants to the Attorney General, as he may designate specifically for such purposes.

(b) The Commissioner is authorized to make such expenditures, to employ such additional temporary and permanent employees, and to rent such quarters outside the District of Columbia as may be necessary for carrying out the provisions of this chapter. (June 28, 1940, ch. 439, title III, § 37, 54 Stat. 675.)

§ 459. Definitions and effective date. (a) Definitions.

For the purposes of this chapter—

(1) the term "United States", when used in a geographical sense, means the States, the Territories of Alaska and Hawaii, the District of Columbia, Puerto Rico, and the Virgin Islands;

(2) the term "Commissioner" means the Commissioner of Immigration and Naturalization.

(b) Effective date.

The provisions of this chapter shall take effect on June 28, 1940; except that sections 451 and 452 of this title shall take effect sixty days after said date. (June 28, 1940, ch. 439, title III, § 38, 54 Stat. 675.)

§ 460. Registration of aliens in Canal Zone.

The President is authorized to provide, by Executive order, for the registration and fingerprinting, in a manner as nearly similar to that provided in this chapter as he deems practicable, of aliens in the Panama Canal Zone. (June 28, 1940, ch. 439, title III, § 39, 54 Stat. 676.)